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BLACKTOWN DEVELOPMENT CONTROL PLAN

2015

Part F

Telecommunications Facilities

Blacktown City Council

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1 Objectives

These provisions are designed to provide a consistent approach to the assessment of Development Applications (DAs) for the location and siting of telecommunications facilities within the City of Blacktown pursuant to the provisions of the *Environmental Planning and Assessment Act 1979*. The general objectives of these guidelines are to:

(a) Minimise possible adverse public health effects of telecommunications facilities by designing and siting facilities in a sensitive manner

(b) Preserve the visual character and amenity of the Blacktown City Council area by:

  (i) Providing siting and aesthetic guidelines for antennas, towers, microwave dishes and associated equipment and structures

  (ii) Minimising the number of additional telecommunications antennas, towers and microwave dishes by encouraging the sharing and co-location of facilities

  (iii) Not supporting the location of facilities on Community Land if the core objectives of the Community Land classification under the *Local Government Act 1993* are not met.

2 Application of this Part

Council will apply the guidelines outlined in Section 3 in its assessment of any DA for a telecommunications facility. A telecommunications facility and telecommunications network are defined in Blacktown Local Environmental Plan (LEP) 2015 as:

Telecommunications facility means:
(a) Any part of the infrastructure of a telecommunications network, or
(b) Any line, cable, optical fibre, fibre access node, interconnect point equipment, apparatus, tower, mast, antenna, dish, tunnel, duct, hole, pit, pole or other structure, in connection with a telecommunications network, or
(c) Any other thing used or in connection with a telecommunications network.

Telecommunications Network means a system, or series of systems, that carries, or is capable of carrying, communications by means of guided or unguided electromagnetic energy, or both.

The following Federal Act and State Policy apply to telecommunications infrastructure and should be referred to as a first step in determining the type of approval required for the proposed works.

(a) *Telecommunications Act 1997*

The *Telecommunications Act 1997* is Federal Government legislation that sets out carriers' rights and responsibilities when inspecting, maintaining or installing telecommunications facilities. Only works outlined in Schedule 3 of the Telecommunications Act which are considered 'low-impact' facilities are exempt from NSW planning law.

(b) *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*

The *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* outlines minor works for which a Development Application is not required. If the works are classified as complying development, a Complying Development Certificate is required (more information is available in Part A of this DCP). Some relevant facilities are classified as exempt and do not require consent.

All works that are not listed in Schedule 3 of the Telecommunications Act and not identified in the State Environmental Planning Policy require Development Consent from Council.

Carriers should use the guidelines outlined in Section 3 for the identification of appropriate sites early in the design stage. Council will assist with appropriate site identification during pre DA lodgement discussions.

The guidelines may also be applied to existing facilities which are being replaced or modified, in an effort to reduce their visual impact.

Each new telecommunications proposal will be merit assessed on a case by case basis, applying the guidelines in this document.

3 What to submit with the Development Application

On receipt of a proposal to construct a telecommunications facility, Council will:

(a) Publicly advertise the proposal for a minimum of 14 days in a newspaper circulating in the locality

(b) Advise all persons who appear to the Council to own or occupy adjoining and neighbouring land.

The potential for sharing (using a common structure) and co-location (occupying the same site) of facilities should be given high priority. The sharing of existing antennas by the use of combiners should be pursued in the first instance wherever possible. Existing towers and poles or other such structures should be investigated for their suitability for the sharing of antennas. Co-locating on building rooftops with existing antennas should also be investigated.

Where the facility is proposed to be located on land classified as "Community Land", the facility must not be detrimental to achieving the core objectives of the Community Land classification under the *Local Government Act 1993*.

In addition to plans and elevations, a DA must include the following:

3.1 Electromagnetic energy (EME) assessment

A demonstration that the proposed development will not cause a level of electromagnetic radiation beyond that permitted by the relevant Australian Standard or as specified by the Australian Communications Authority. A map should be provided showing predicted EME levels at 0m, 100m, 200m and 300m from the proposed facility. Carriers are also required to demonstrate how emission levels are being kept as low as possible.

3.2 Network masterplans

The carrier's network masterplan for the subject type of telecommunications infrastructure should be included in order to identify opportunities for co-location or sharing of facilities.

3.3 Site identification and visual / aesthetic considerations

A site analysis, showing prominent views and vistas and methods used for minimising any adverse impacts of antennas and masts (and associated equipment and structures), must be submitted with the DA.

The siting of facilities shall be investigated giving priority to the following zones in descending order of appropriateness:

(a) Industrial
(b) Business
(c) Open space/corridor land/drainage reserves
(d) Rural
(e) Residential
(f) Special uses containing sensitive land uses, such as schools, child care centres, hospitals, housing for the aged.

NB: Siting facilities on or near an Item of Environmental Heritage is considered inappropriate in all zones.

A case by case and performance-based approach shall be followed, and consideration of the need to locate facilities as far away as practicable from nominated land uses should be a primary criteria. Some trade-offs may need to be made to achieve a balance between visual and aesthetic considerations and separation from sensitive land uses.

Details of all alternative sites considered in preparing a DA should be provided to Council with every DA. Should a series of suitable alternative sites be identified, siting should give preference to aesthetic considerations and to sharing of facilities. Siting should also take into account likely future adjoining land uses.

A DA will be assessed for siting in terms of the overall pattern of existing telecommunications facilities, to ensure that opportunities for sharing are maximised and a complete and cumulative impact can be determined. A carrier's network masterplan will assist in this regard.

Where opportunities exist, and where transmitting requirements permit, antennas and other structures should be incorporated into building architecture or located on existing rooftop structures, or not be visible from pedestrian eye level from fronting streets.

Innovative examples of doing so include design incorporation into buildings or clock towers. Radio transparent materials may allow antennas to be concealed inside such structures. They should be located towards the rear of the building rooftop or positioned to minimise visibility. If transmitting requirements preclude this, the antenna's appearance should be softened or screened by architectural means.

The visual impact of antennas, masts and associated equipment structures can be reduced by choosing colours, shapes and surfaces that blend in and complement the existing environment.

3.4 Landscaping plan

Applicants must submit with their DA a detailed landscaping plan. The landscaping plan should include the following:

(a) Northpoint

(b) Scale

(c) Main structures on the site and paved areas

(d) Existing trees to be removed or retained

(e) Proposed planting areas both around the base of the tower and around the periphery of the site in strategic locations to improve screening of the tower.

4 Justification

In considering any variation from the guidelines of this Part of Blacktown Development Control Plan 2015, Council will have regard to the following environmental factors:

(a) The location, design and siting of the facility

(b) The existing and proposed use of the land and adjoining properties

(c) The need for the proposal and alternatives considered by the proponent

(d) The proximity of the proposed facility to residential and community facility land uses

(e) Any guidelines, advice or supporting information submitted by the proponent or other authorities which may be relevant

(f) The visual impact of the proposal and measures proposed to ameliorate this impact

(g) Site access, security and landscaping proposals

(h) Any submissions received from the public.